

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **National Immigrant Women's Advocacy Project** (<https://niwaplibrary.wcl.american.edu>)
- **Immigration Advocates Network** (<https://www.immigrationadvocates.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's

office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ I came to this country on August 14, 2019. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2020-08-14
- **Basis:** INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)
- **Triggering event:** entry on 2019-08-14
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances'

that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.

⚠ The next hearing is scheduled for August 20, 2026, at 9:00 a.m.

- **Estimated deadline:** 2026-08-20
- **Basis:** The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.
- **Triggering event:** hearing on 2026-08-20
- **Jurisdiction:** MN
- This is the hearing date printed on your immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.

⚠ Danilo hit me again on March 15 this year.

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-03-15
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **Victim displayed visible redness and swelling to her left cheek and a small laceration above the left eyebrow.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-03-15
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **The report date is March 15, 2026.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-03-15
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake surfaced 12 potential legal issues across Federal, State - Minnesota. The most strongly supported issues are Domestic Violence - Criminal Proceedings, Immigration Removal Proceedings, and Notification of Address Change Requirement. IMPORTANT: at least one deadline appears to have already passed — I came to this country on August 14, 2019. (computed 2020-08-14) [INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)]. Confirm this immediately, as missed deadlines can end a case. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 100%; 8 follow-up questions below would strengthen the assessment.

Completeness Score: 100%

Untitled Intake

Generated: 2026-07-11 03:50 UTC

Matter ID: 188

Run ID: 42

Completeness: 100%

Federal

| Immigration Removal Proceedings

Claim Type: identified | **Confidence:** 95%

FOLIO IRI: <https://folio.openlegalstandard.org/R7aFBns3Z2d9MuNI5sDEGxF>

ISSUE

The facts clearly indicate that Marisol Prueba Gomez is in removal proceedings due to her Notice to Appear and the scheduled immigration court date.

RULE

No authorities identified for this claim.

APPLICATION

- **Notice to Appear (NTA):** Supported (78% confidence) - Marisol was served with a Notice to Appear which initiates removal proceedings.
 - Fact: Mari received a hearing letter. (78% match)
- **Court Date:** Supported (85% confidence) - The immigration court date is scheduled for August 20, 2026.
 - Fact: The hearing letter was received at the end of June. (71% match)
 - Fact: Mari must go to court at Fort Snelling on August 20, 2026, at nine in the morning. (85% match)
- **Risk of In-Absentia Removal:** Supported (78% confidence) - Failure to attend the hearing may result in removal in absentia.
 - Fact: If Mari does not attend the court, they can order her removal in absentia. (78% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the filing deadline for any potential asylum application or motion to reopen her removal proceedings?

CONCLUSION

3 of 3 elements supported (80% confidence)

| Criminal Penalties

Claim Type: discovered | **Confidence:** 70%

Related to: Immigration Removal Proceedings

FOLIO IRI: <https://folio.openlegalstandard.org/R0tJKDoGSixec7FgGKnAAI>

ISSUE

Discovered via FOLIO ontology traversal from Immigration Removal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Criminal Penalties' has not been explored with fact mappings

CONCLUSION

No elements defined

Litigation Remedies, Relief, and Penalties

Claim Type: discovered | **Confidence:** 70%

Related to: Immigration Removal Proceedings

FOLIO IRI: <https://folio.openlegalstandard.org/RsJ6DupkWKlUlCHH0Ycxvp>

ISSUE

Discovered via FOLIO ontology traversal from Immigration Removal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Remedies, Relief, and Penalties' has not been explored with fact mappings

CONCLUSION

No elements defined

| Dispute Events

Claim Type: discovered | **Confidence:** 40%

Related to: Immigration Removal Proceedings

ISSUE

Discovered via FOLIO ontology traversal from Immigration Removal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Dispute Events' has not been explored with fact mappings

CONCLUSION

No elements defined

| Immigration Events

Claim Type: discovered | **Confidence:** 40%

Related to: Immigration Removal Proceedings

ISSUE

Discovered via FOLIO ontology traversal from Immigration Removal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Immigration Events' has not been explored with fact mappings

CONCLUSION

No elements defined

| Litigation Events

Claim Type: discovered | **Confidence:** 40%

Related to: Immigration Removal Proceedings

ISSUE

Discovered via FOLIO ontology traversal from Immigration Removal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Events' has not been explored with fact mappings

CONCLUSION

No elements defined

General

| Notification of Address Change Requirement

Claim Type: discovered | **Confidence:** 90%

ISSUE

It's critical that she understands and complies with this requirement to avoid negative implications for her immigration status.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Notification of Address Change Requirement' has not been explored with fact mappings

CONCLUSION

No elements defined

Potential Impact of Domestic Violence Conviction on Immigration Status

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R8N4pMIOhTNbqcmDczSephq>

ISSUE

Given the overlap between domestic violence issues and immigration law, especially regarding the potential for adverse consequences on Mari's case, this connection requires legal analysis.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): How will Marisol's domestic violence report and the pending charge against Danilo

affect her immigration status and potential relief in removal proceedings?

CONCLUSION

No elements defined

| Danilo's Alcohol Use and its Implications

Claim Type: discovered | **Confidence:** 72%

ISSUE

The intersection of substance abuse, domestic violence, and child welfare laws necessitates the assessment and possibly legal representation to ensure the safety and rights of both Marisol and her children.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Danilo's Alcohol Use and its Implications' has not been explored with fact mappings

CONCLUSION

No elements defined

| Asylum Application Status

Claim Type: discovered | **Confidence:** 40%

ISSUE

If the asylum application was not filed or is pending improperly, it could significantly affect her removal proceedings and options for relief.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Has Marisol filed her asylum application within the one-year deadline and what is the status of that application?

CONCLUSION

No elements defined

| Employment Law Issues

Claim Type: discovered | **Confidence:** 40%

ISSUE

Understanding possible legal consequences of using a false identity for work is important, as it may affect her standing in immigration proceedings.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Law Issues' has not been explored with fact mappings

CONCLUSION

No elements defined

| Legal Aid and Representation

Claim Type: discovered | **Confidence:** 40%

ISSUE

Access to legal representation is vital to navigate the complexities of both her immigration and criminal cases effectively.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Legal Aid and Representation' has not been explored with fact mappings

CONCLUSION

No elements defined

Possibility of Filing for a U Visa

Claim Type: discovered | **Confidence:** 40%

ISSUE

Given her cooperation with the police and intention to assist with the prosecution of Danilo, Marisol should explore this avenue for relief under immigration law, which could provide some security against removal.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Possibility of Filing for a U Visa' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Potential Child Custody Issues:** 40% confidence

State - Minnesota

| Domestic Violence - Criminal Proceedings

Claim Type: identified | **Confidence:** 100%

FOLIO IRI: <https://folio.openlegalstandard.org/RNtr2KMwM33LplYnmmxxVY>

ISSUE

Marisol has reported incidents of domestic assault and Danilo has been arrested and charged with domestic assault.

RULE

No authorities identified for this claim.

APPLICATION

- **Domestic Assault Report:** Supported (85% confidence) - Marisol reported domestic assault incidents to the police, which initiated law enforcement action.
 - Fact: Danilo hit me again on March 15 this year. (85% match)
 - Fact: I called the Bloomington police that night. (85% match)
 - Fact: Danilo Cruz Martinez struck Marisol Gomez during an argument. (85% match)
- **Visible Injuries:** Supported (85% confidence) - Marisol displayed visible injuries which were documented in the police report.
 - Fact: The victim displayed visible redness and swelling to her left cheek. (85% match)
 - Fact: The victim had a small laceration above her left eyebrow. (85% match)

- **Arrest of Offender:** Supported (85% confidence) - Danilo was arrested by the police for the domestic violence incident.
 - Fact: The police arrested Danilo. (85% match)
 - Fact: The suspect, Danilo Cruz Martinez, was placed under arrest. (85% match)
- **Criminal Charges:** Supported (85% confidence) - Danilo has been charged with domestic violence under Minn. Stat. 609.2242.
 - Fact: The police gave my cousin a case number. (85% match)
 - Fact: The offense was Domestic Assault according to Minn. Stat. 609.2242. (85% match)
 - Fact: The suspect was charged and the criminal case is pending in Hennepin County District Court. (85% match)

CONCLUSION

4 of 4 elements supported (85% confidence)

| Crimes Against People

Claim Type: discovered | **Confidence:** 70%

Related to: Domestic Violence - Criminal Proceedings

FOLIO IRI: <https://folio.openlegalstandard.org/R7MbuFEaL6NyU9tM2AXk7lk>

ISSUE

Discovered via FOLIO ontology traversal from Domestic Violence - Criminal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Crimes Against People' has not been explored with fact mappings

CONCLUSION

No elements defined

| Criminal Assault

Claim Type: discovered | **Confidence:** 70%

Related to: Domestic Violence - Criminal Proceedings

FOLIO IRI: <https://folio.openlegalstandard.org/R8BLgPtZOuKFI8MtZNTaT0u>

ISSUE

Discovered via FOLIO ontology traversal from Domestic Violence - Criminal Proceedings (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Criminal Assault' has not been explored with fact mappings

CONCLUSION

No elements defined

| Fraudulent Representation for Employment

Claim Type: discovered | **Confidence:** 40%

ISSUE

Marisol's use of a social security number that is not hers to secure employment could implicate issues of fraud or misrepresentation.

RULE

No authorities identified for this claim.

APPLICATION

- **Use of False Information:** Unsupported - Marisol reports that she is using a social security number that is not hers.
- **Employment Verification:** Unsupported - This misinformation could affect her employment status and legal standing.

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Use of False Information' is not yet supported by any facts
 - Element: Use of False Information
- **Unsupported Element** (Priority 40): Element 'Employment Verification' is not yet supported by any facts
 - Element: Employment Verification
- **Unexplored Claim** (Priority 50): Potential claim 'Fraudulent Representation for Employment' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): Is there a risk of additional legal consequences for Marisol due to her use of a social security number that does not belong to her?

CONCLUSION

0 of 2 elements supported (0% confidence)

| Emergency Custody Considerations

Claim Type: discovered | **Confidence:** 30%

ISSUE

Given the history of domestic violence and the need for safety for Marisol and her children, there may be grounds for emergency custody or protective measures.

RULE

No authorities identified for this claim.

APPLICATION

- **History of Domestic Violence:** Unsupported - Marisol reported physical assaults by Danilo and there is a history of alcohol abuse that raises safety concerns.
- **Impact on Children:** Unsupported - Marisol's ability to provide a safe environment for her children is compromised due to the ongoing domestic violence.
- **Need for Protective Measures:** Unsupported - Marisol may seek protective orders to secure her safety and the safety of her children.

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 30): Element 'History of Domestic Violence' is not yet supported by any facts
 - Element: History of Domestic Violence
- **Unsupported Element** (Priority 30): Element 'Impact on Children' is not yet supported by any facts
 - Element: Impact on Children
- **Unsupported Element** (Priority 30): Element 'Need for Protective Measures' is not yet supported by any facts
 - Element: Need for Protective Measures
- **Unexplored Claim** (Priority 50): Potential claim 'Emergency Custody Considerations' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there an immediate risk to Marisol or her children that would justify filing for emergency custody?

CONCLUSION

0 of 3 elements supported (0% confidence)

Action Items

| Documents to Gather

- [] **[URGENT]** Element 'Use of False Information' is not yet supported by any facts
 - **Claim:** Fraudulent Representation for Employment
 - **Element:** Use of False Information
- [] **[URGENT]** Element 'Employment Verification' is not yet supported by any facts
 - **Claim:** Fraudulent Representation for Employment

- **Element:** Employment Verification
- [] **[URGENT]** Element 'History of Domestic Violence' is not yet supported by any facts
 - **Claim:** Emergency Custody Considerations
 - **Element:** History of Domestic Violence
- [] **[URGENT]** Element 'Impact on Children' is not yet supported by any facts
 - **Claim:** Emergency Custody Considerations
 - **Element:** Impact on Children
- [] **[URGENT]** Element 'Need for Protective Measures' is not yet supported by any facts
 - **Claim:** Emergency Custody Considerations
 - **Element:** Need for Protective Measures

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: I came to this country on August 14, 2019. (estimated 2020-08-14; INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)).
 WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances' that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.
 - **Deadline:** 2020-08-14

- [] **[URGENT]** Confirm the deadline for: The next hearing is scheduled for August 20, 2026, at 9:00 a.m. (estimated 2026-08-20; The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.). This is the hearing date printed on your immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-08-20
- [] **[URGENT]** You described being hurt by a spouse who is a U.S. citizen or green-card holder. Federal law (VAWA) may let you apply for immigration status on your own, without their help or knowledge — this is called a VAWA self-petition. Has a lawyer ever talked with you about whether you qualify? [Authority: INA § 204(a)(1); 8 U.S.C. § 1154 (VAWA self-petition)]
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
- [] **[URGENT]** Asylum applications normally must be filed within one year of arriving in the U.S. If your first year has passed — including if someone who was not a real lawyer took your money and never filed — you may still qualify under the 'changed circumstances' or 'extraordinary circumstances' exceptions (fraud

- by a notario can count). Ask a lawyer about the one-year-bar exceptions. When did you arrive, and did anyone ever actually file an asylum application for you? [Authority: INA § 208(a)(2)(B), (D); 8 U.S.C. § 1158(a)(2)(B), (D) (one-year bar; changed/extraordinary-circumstances exceptions)]
- [] **[URGENT]** You mentioned working with a Social Security number that is not yours. Working without authorization can normally block a green-card application filed inside the U.S. (the INA § 245(c)(2) bar) — BUT people approved under VAWA are exempt from that bar. A lawyer should review this together with any VAWA option. Have you told a lawyer about this work history? [Authority: INA § 245(c)(2); 8 U.S.C. § 1255(c)(2) (unauthorized-employment bar; VAWA self-petitioners exempt)]
 - [] **[URGENT]** About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138 S. Ct. 2105 (2018); *Niz-Chavez v. Garland*, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]
 - [] **[URGENT]** Potential claim 'Criminal Penalties' has not been explored with fact mappings
 - **Claim:** Criminal Penalties
 - [] **[URGENT]** Potential claim 'Emergency Custody Considerations' has not been explored with fact mappings
 - **Claim:** Emergency Custody Considerations
 - [] **[URGENT]** Potential claim 'Fraudulent Representation for Employment' has not been explored with fact mappings
 - **Claim:** Fraudulent Representation for Employment

- [] **[URGENT]** Potential claim 'Litigation Remedies, Relief, and Penalties' has not been explored with fact mappings
 - **Claim:** Litigation Remedies, Relief, and Penalties
- [] **[URGENT]** Potential claim 'Litigation Events' has not been explored with fact mappings
 - **Claim:** Litigation Events
- [] **[URGENT]** Potential claim 'Dispute Events' has not been explored with fact mappings
 - **Claim:** Dispute Events
- [] **[URGENT]** Potential claim 'Immigration Events' has not been explored with fact mappings
 - **Claim:** Immigration Events
- [] **[URGENT]** Potential claim 'Criminal Assault' has not been explored with fact mappings
 - **Claim:** Criminal Assault
- [] **[URGENT]** Potential claim 'Crimes Against People' has not been explored with fact mappings
 - **Claim:** Crimes Against People
- [] **[URGENT]** Potential claim 'Legal Aid and Representation' has not been explored with fact mappings
 - **Claim:** Legal Aid and Representation
- [] **[URGENT]** Potential claim 'Notification of Address Change Requirement' has not been explored with fact mappings
 - **Claim:** Notification of Address Change Requirement
- [] **[URGENT]** Potential claim 'Employment Law Issues' has not been explored with fact mappings
 - **Claim:** Employment Law Issues

- [] **[URGENT]** Potential claim 'Possibility of Filing for a U Visa' has not been explored with fact mappings
 - **Claim:** Possibility of Filing for a U Visa
- [] **[URGENT]** Potential claim 'Danilo's Alcohol Use and its Implications' has not been explored with fact mappings
 - **Claim:** Danilo's Alcohol Use and its Implications
- [] **[URGENT]** What is the filing deadline for any potential asylum application or motion to reopen her removal proceedings?
 - **Claim:** Immigration Removal Proceedings
- [] **[URGENT]** Is there an immediate risk to Marisol or her children that would justify filing for emergency custody?
 - **Claim:** Emergency Custody Considerations
- [] **[URGENT]** How will Marisol's domestic violence report and the pending charge against Danilo affect her immigration status and potential relief in removal proceedings?
 - **Claim:** Potential Impact of Domestic Violence Conviction on Immigration Status
- [] **[URGENT]** Has Marisol filed her asylum application within the one-year deadline and what is the status of that application?
 - **Claim:** Asylum Application Status
- [] **[URGENT]** Is there a risk of additional legal consequences for Marisol due to her use of a social security number that does not belong to her?
 - **Claim:** Fraudulent Representation for Employment

Gap Report Appendix

Overall Completeness: 100%

[=====] 100%

Asylum Application Status

- **Procedural Requirement** (Priority 50): Has Marisol filed her asylum application within the one-year deadline and what is the status of that application?
 - See Action Item #31

Crimes Against People

- **Unexplored Claim** (Priority 50): Potential claim 'Crimes Against People' has not been explored with fact mappings
 - See Action Item #22

Criminal Assault

- **Unexplored Claim** (Priority 50): Potential claim 'Criminal Assault' has not been explored with fact mappings
 - See Action Item #21

Criminal Penalties

- **Unexplored Claim** (Priority 50): Potential claim 'Criminal Penalties' has not been explored with fact mappings
 - See Action Item #14

Danilo's Alcohol Use and its Implications

- **Unexplored Claim** (Priority 50): Potential claim 'Danilo's Alcohol Use and its Implications' has not been explored with fact mappings
 - See Action Item #27

Dispute Events

- **Unexplored Claim** (Priority 50): Potential claim 'Dispute Events' has not been explored with fact mappings
 - See Action Item #19

Emergency Custody Considerations

- **Unsupported Element** (Priority 30): Element 'History of Domestic Violence' is not yet supported by any facts
 - Element: History of Domestic Violence
 - See Action Item #3
- **Unsupported Element** (Priority 30): Element 'Impact on Children' is not yet supported by any facts
 - Element: Impact on Children
 - See Action Item #4
- **Unsupported Element** (Priority 30): Element 'Need for Protective Measures' is not yet supported by any facts
 - Element: Need for Protective Measures
 - See Action Item #5
- **Unexplored Claim** (Priority 50): Potential claim 'Emergency Custody Considerations' has not been explored with fact mappings
 - See Action Item #15
- **Procedural Requirement** (Priority 50): Is there an immediate risk to Marisol or her children that would justify filing for emergency custody?
 - See Action Item #29

Employment Law Issues

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Law Issues' has not been explored with fact mappings
 - See Action Item #25

Fraudulent Representation for Employment

- **Unsupported Element** (Priority 40): Element 'Use of False Information' is not yet supported by any facts
 - Element: Use of False Information
 - See Action Item #1
- **Unsupported Element** (Priority 40): Element 'Employment Verification' is not yet supported by any facts
 - Element: Employment Verification
 - See Action Item #2
- **Unexplored Claim** (Priority 50): Potential claim 'Fraudulent Representation for Employment' has not been explored with fact mappings
 - See Action Item #16
- **Procedural Requirement** (Priority 50): Is there a risk of additional legal consequences for Marisol due to her use of a social security number that does not belong to her?
 - See Action Item #32

Immigration Events

- **Unexplored Claim** (Priority 50): Potential claim 'Immigration Events' has not been explored with fact mappings
 - See Action Item #20

Immigration Removal Proceedings

- **Procedural Requirement** (Priority 50): What is the filing deadline for any potential asylum application or motion to reopen her removal proceedings?
 - See Action Item #28

Legal Aid and Representation

- **Unexplored Claim** (Priority 50): Potential claim 'Legal Aid and Representation' has not been explored with fact mappings
 - See Action Item #23

Litigation Events

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Events' has not been explored with fact mappings
 - See Action Item #18

Litigation Remedies, Relief, and Penalties

- **Unexplored Claim** (Priority 50): Potential claim 'Litigation Remedies, Relief, and Penalties' has not been explored with fact mappings
 - See Action Item #17

Notification of Address Change Requirement

- **Unexplored Claim** (Priority 50): Potential claim 'Notification of Address Change Requirement' has not been explored with fact mappings
 - See Action Item #24

Possibility of Filing for a U Visa

- **Unexplored Claim** (Priority 50): Potential claim 'Possibility of Filing for a U Visa' has not been explored with fact mappings
 - See Action Item #26

Potential Impact of Domestic Violence Conviction on Immigration Status

- **Procedural Requirement** (Priority 50): How will Marisol's domestic violence report and the pending charge against Danilo affect her immigration status and potential relief in removal proceedings?
 - See Action Item #30

Uncategorized

- **Procedural Requirement** (Priority 90): You described being hurt by a spouse who is a U.S. citizen or green-card holder. Federal law (VAWA) may let you apply for immigration status on your own, without their help or knowledge — this is called a VAWA self-petition. Has a lawyer ever talked with you about whether you qualify? [Authority: INA § 204(a)(1); 8 U.S.C. § 1154 (VAWA self-petition)]
 - See Action Item #8
- **Procedural Requirement** (Priority 88): You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
 - See Action Item #10
- **Procedural Requirement** (Priority 86): You mentioned working with a Social Security number that is not yours. Working without authorization can normally block a green-card application filed inside the U.S. (the INA § 245(c)(2) bar) — BUT people approved under VAWA are exempt from that bar. A lawyer should review this together with any VAWA option. Have you told a lawyer about

this work history? [Authority: INA § 245(c)(2); 8 U.S.C. § 1255(c)(2) (unauthorized-employment bar; VAWA self-petitioners exempt)]

◦ See Action Item #12

- **Procedural Requirement** (Priority 84): About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138 S. Ct. 2105 (2018); *Niz-Chavez v. Garland*, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]

◦ See Action Item #13

- **Procedural Requirement** (Priority 88): Asylum applications normally must be filed within one year of arriving in the U.S. If your first year has passed — including if someone who was not a real lawyer took your money and never filed — you may still qualify under the 'changed circumstances' or 'extraordinary circumstances' exceptions (fraud by a notario can count). Ask a lawyer about the one-year-bar exceptions. When did you arrive, and did anyone ever actually file an asylum application for you? [Authority: INA § 208(a)(2)(B), (D); 8 U.S.C. § 1158(a)(2)(B), (D) (one-year bar; changed/extraordinary-circumstances exceptions)]

◦ See Action Item #11

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority:

Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]

- See Action Item #9

Open Questions

1. Has a lawyer ever talked with you about whether you qualify for immigration status through the VAWA self-petition?
2. Have you discussed with anyone whether you've applied for a U visa after helping the police?
3. When did you arrive in the U.S., and did anyone ever help you file an asylum application?
4. Have you shared your work history, particularly about using a Social Security number that isn't yours, with a lawyer?
5. Did the immigration notice you received state the exact date and time of your court hearing, or were those details missing?
6. Have you experienced any situations involving criminal penalties that you think might require legal action?
7. Are there any immediate custody concerns about your children that you believe require urgent legal attention?
8. Have you been misled about job offers or working conditions by someone who might have misrepresented themselves?